MR. SUDHANSHU KR. SINGH
(Advocate)
JHARKHAND HIGH COURT

ADVOCATE

Office-cum- Residence
Sai Pushpanjali N1, Sai City,
Ranchi, Jharkhand
Email- Sidhu5645@gmail.com
Tel:8873686957/7717775122

Ref : SS/HC/M/23 Date:-03-04-2026

(Speed Post/Regd. with A.D/Courier)

From,

Suraj Satyarthi
R/o CC 49, Colonel Niwas, P.C. Colony, East of Gayatri Mandir, Kankarbagh, Shekhpura, District- Patna, Bihar-800020
Mobile No. 8839912611

To,

1. **The Managing Director**
   Apple India Private Limited
   Having a Registered Office at:
   19th Floor, Concorde Tower C,
   UB City, No. 24, Vittal Mallya
   Road, Bengaluru, Karnataka-
   560001
2. **The Service Head**
   F1 Info Solutions & Services
   Pvt. Ltd (Authorized Service
   Centre of Apple)

Office: 1st Floor, Marwari
Campus, above Bansi Vihar
Restaurant, Fraser Road,
Patna, Bihar-800001
Mob:9693225183/7280880037

Subject: *Legal Notice for Manufacturing Defect, Deficiency in Service, Unfair Trade Practice, and Breach of Warranty in respect of Apple MacBook Air (M4) purchased by my client, Mr. Suraj Satyarthi – Demand for Replacement / Refund and Compensation.*

Dear Sir/Madam,

Under the authority and instructions of my client, namely Mr. Suraj Satyarthi, I hereby serve you the legal notice under the following circumstances: -

1. That my client purchased a **brand-new Apple MacBook Air 13-inch (M4, 16GB/256GB, Midnight)** in February 2026 through an authorised online platform. The total consideration paid was **₹81,160.70** (invoice value ₹94,990/- before discounts). The product was covered under your **One-Year Limited Hardware Warranty.**
2. That the product details are as follows:
    - **Product:** Apple MacBook Air 13-inch (M4, 16GB RAM, 256GB SSD, Midnight)
    - **Year / Series**: 2025 Model
    - **Serial Number**: DJ31J7MLJ4
    - **Date of Order**: 01.02.2026
    - **Date of Delivery**: 08.02.2026
    - **Place of Delivery**: Patna, Bihar

- **Seller (as per invoice)**: Clicktech Retail Pvt. Ltd. (Authorised Seller)
- **Invoice Number**: DED4-3977711
- **Invoice Date**: 04.02.2026
- **Invoice Value (MRP)**: ₹94,990/-
- **Mode of Payment**: No-Cost EMI
- **EMI Details**: ₹14,165/- per month × 6 months
- **Warranty Type**: Apple One-Year Limited Hardware Warranty
- **Warranty Period**: 07.02.2026 to 07.02.2027

3. That within **11 days of delivery**, the said MacBook started suffering from **repeated and severe system crashes**, freezing, and automatic reboots. These failures were accompanied by **Apple-generated crash logs** that clearly recorded hardware-level faults, including uninterruptible hardware wait states (TH_UNINT), GPU and MMU-related errors.
4. That the factual chronology of hardware failure and warranty service, supported exclusively by Apple-generated diagnostics and authorised service records, is set out below:

Date Event	Particulars
08.02.2026	Delivery of the new Apple MacBook Air 13-inch (M4) to the complainant. Device is covered under a one-year limited hardware warranty.
19.02.2026	The first system crash occurred. Apple-generated crash logs recorded prolonged uninterruptible hardware wait (TH_UNINT)

	states in power management and GPU work loops, indicating hardware-level non-responsiveness.
20.02.2026	Device submitted to Apple's authorised service centre. No hardware diagnosis conducted. Service records mention cause as "NA". Only action taken was factory OS erase and reinstall; no component testing or repair performed.
21.02.2026	Within 11 hours of the service centre's OS reset, the device crashed again. Apple-generated crash logs recorded a userspace watchdog timeout with an identical hardware failure signature, conclusively eliminating software as the cause.
22.02.2026 – 25.02.2026	Multiple subsequent crashes occurred. Apple kernel, watchdog, and thermal logs recorded MMU/TLB translation faults, GPU and audio subsystem failures, and thermal instability, confirming persistent logic-board/silicon failure.
Post 25.02.2026	An internal RMA was raised and closed without disclosure or resolution. Despite continued hardware failures within the warranty period, replacement was denied,

and no effective remedial action was provided.

5. That despite multiple complaints raised with Apple Support and submission of detailed technical evidence, my client received **no meaningful written response**. Eventually, the device was submitted to your **Authorised Service Centre – F1-Info Solutions & Services Pvt. Ltd., Patna** on **25.02.2026.**
6. That the so-called "repair" carried out by the authorised service centre consisted merely of a **factory OS erase and reinstall**, without any hardware diagnosis or component replacement. The service job sheet itself records the cause as **"NA"**, with **no engineer name or signature**, clearly evidencing non-application of mind.
7. That shockingly, the device **crashed again within 11 hours** of the said service intervention, thereby conclusively ruling out any software-related issue and establishing a **manufacturing defect in the logic board / SoC.**
8. That thereafter, my client continued to suffer repeated crashes, while the device remained in the custody of your authorised service centre for **over 30 days**, without diagnosis, repair, or resolution, even as my client was compelled to continue paying EMI for a defective product.
9. That during the said period, no hardware diagnosis was carried out or documented, no component was tested, replaced, or repaired, no completion timeline was communicated to my client, and the Apple Support agent, during the call dated 6 March, expressly acknowledged that the authorised service centre was unable to recreate the reported fault.

10. **That during this period, Apple Support representatives repeatedly insisted that my client take back the defective device**, despite unresolved and recurring hardware failures.
11. That during this period, my client continuously approached Apple Support through emails and calls, submitted crash logs, videos, and evidence, yet:

    - No meaningful written response was provided,
    - An internally raised **RMA was closed without notice**,
    - Replacement was repeatedly denied verbally,
    - My client was wrongly redirected to the seller even after the seller's return window had expired.

12. That the device has remained defective from an early stage of ownership and has failed to perform its basic intended function, despite being well within the warranty period.
13. That due to your insensitive, negligent, and arbitrary conduct, my client has suffered not only financial loss but also severe mental agony and harassment.
14. That your failure to replace a MacBook suffering from a manufacturing defect constitutes a clear breach of warranty and amounts to deficiency in service and unfair trade practice under the Consumer Protection Act, 2019.

    Therefore, through this notice, you are hereby called upon to replace the defective MacBook with a brand-new Apple MacBook Air M4 of identical specifications or superior model; or, in the alternative, to refund of the purchase price along with the interest rate of @18% from the date 25-02-2026, till the date of actual payment.

Complete the above within 15 days from the date of receipt of this notice. Failure to comply with the above demands shall compel my client to initiate appropriate proceedings before the District Consumer Disputes Redressal Commission, seeking replacement or refund of the product, compensation for the losses suffered, along with costs and interest, without any further notice and entirely at your risk as to consequences.

Please treat this notice as final and binding.

Notes: *Please take further notice that a copy of this legal notice has been kept in my office as a record for future action/ use/ reference.*

Dated: 03-04-2026

Place: Ranchi

Mr. Sudhanshu Kr. Singh

Advocate

Jharkhand High Court